

SURPLUS LINES NOTICE

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THIS INSURANCE CONTRACT IS WITH AN INSURER NOT LICENSED TO TRANSACT INSURANCE IN THIS STATE AND IS ISSUED AND DELIVERED AS A SURPLUS LINE COVERAGE UNDER THE TEXAS INSURANCE STATUTES.

THE TEXAS DEPARTMENT OF INSURANCE DOES NOT AUDIT THE FINANCES OR REVIEW THE SOLVENCY OF THE SURPLUS LINES INSURER PROVIDING THIS COVERAGE, AND THIS INSURER IS NOT A MEMBER OF THE PROPERTY AND CASUALTY INSURANCE GUARANTY ASSOCIATION CREATED UNDER CHAPTER 462, INSURANCE CODE. CHAPTER 225, INSURANCE CODE, REQUIRES PAYMENT OF 4.85% PERCENT TAX ON GROSS PREMIUM.



**SOMPO
INTERNATIONAL**

NOTICE TO POLICYHOLDERS Sompo International Breach Assist Hotline

R +1 844 347 7077
Mullen Coughlin LLC

This Notice shall be construed to be a part of your policy, but no coverage is provided by this Notice, and it cannot be construed to replace any provisions of your policy.

If you know or suspect that your organization has suffered a Ransomware event, security breach, or a data breach, please contact the Sompo International Breach Assist Hotline above as soon as possible for immediate assistance.

The Sompo International Breach Assist Hotline is an actively monitored voicemail box. Under normal circumstances, you will be contacted by Sompo International Breach Assist counsel between two and four business hours from the time you leave your message, which should include your organization's name, your Sompo International policy number (if available), and the name and contact information of an individual authorized to discuss the suspected breach.

Your initial call will include a discussion of the Sompo International Breach Assist counsel's role as well as an overview of the incident response process.

Information requested on the initial call typically includes:

w Some general information about your organization

w Details, to the extent known, regarding the data exposure event (e.g. what happened, when the event occurred, when was the event discovered)

w How the event was discovered (e.g. internal discovery or contact from a customer, regulator or credit card company)

w Whether the event has been contained or is potentially ongoing

w The type of data involved and the number of known or potentially affected individuals

w Whether or not there has been any contact with law enforcement

w Whether any party other than Sompo International has been notified

PLEASE NOTE: PROMPT REPORTING OF A BREACH IS CRITICAL. EVEN IF YOU DO NOT YET HAVE ALL OF THE INFORMATION LISTED ABOVE, PLEASE CONTACT THE SOMPO INTERNATIONAL BREACH ASSIST HOTLINE IMMEDIATELY IF A BREACH IS SUSPECTED

Sompo International makes no representation, guarantee or warranty, express or implied, concerning the services or products of any vendors, including any warranty of fitness for a particular purpose, accuracy, reliability, or efficiency of such services or products. Vendors identified by Sompo International in this Notice or in any other materials relating to your policy are independent contractors, and Sompo International has no control over the services rendered or products provided. Your use of the vendors is at the your sole risk, and under no circumstances shall Sompo International be liable for any damages arising from any services rendered or failed to be rendered or any products provided by any vendor identified in this Notice or any other materials.



NOTICE TO POLICYHOLDERS

SOMPO INTERNATIONAL BREACH ASSIST HOTLINE

This Notice shall be construed to be a part of your policy, but no coverage is provided by this Notice, and it cannot be construed to replace any provisions of your policy.

If you know or suspect that your organization has suffered a data breach, or if you have been notified by a third party that you have suffered a breach, please contact the Sompo International Breach Assist Hotline below as soon as possible for immediate assistance.

**Sompo International
Breach Assist Hotline**
+1 844 347 7077
Mullen Coughlin LLC

The Sompo International Breach Assist Hotline is an actively monitored voicemail box. Under normal circumstances, you will be contacted by Sompo International Breach Assist counsel between two and four business hours from the time you leave your message, which should include your organization's name, your Sompo International policy number (if available), and the name and contact information of an individual authorized to discuss the suspected breach.

Your initial call will include a discussion of the Sompo International Breach Assist counsel's role as well as an overview of the incident response process.

Information requested on the initial call typically includes:

- some general information about your organization;
- details, to the extent known, regarding the data exposure event (e.g. what happened, when the event occurred, when was the event discovered);
- how the event was discovered (e.g. internal discovery or contact from a customer, regulator or credit card company);
- whether the event has been contained or is potentially ongoing;
- the type of data involved and the number of known or potentially affected individuals;
- whether or not there has been any contact with law enforcement; and
- whether any party other than Sompo International has been notified.

PLEASE NOTE: PROMPT REPORTING OF A BREACH IS CRITICAL. EVEN IF YOU DO NOT YET HAVE ALL OF THE INFORMATION LISTED ABOVE, PLEASE CONTACT THE SOMPO INTERNATIONAL BREACH ASSIST HOTLINE IMMEDIATELY IF A BREACH IS SUSPECTED

Sompo International makes no representation, guarantee or warranty, express or implied, concerning the services or products of any vendors, including any warranty of fitness for a particular purpose, accuracy, reliability, or efficiency of such services or products. The vendors identified by Sompo International in this Notice or in any other materials relating to your policy are independent contractors, and Sompo International has no control over the services rendered or products provided. Your use of the vendors is at your sole risk, and under no circumstances shall Sompo International be liable for any damages arising from any services rendered or failed to be rendered or any products provided by any vendor identified in this Notice or any other materials.



SOMPO INTERNATIONAL CYBER RISK PORTAL AND RISK MANAGEMENT RESOURCES NOTICE TO POLICYHOLDERS

This Notice shall be construed to be a part of your policy, but no coverage is provided by this Notice, and it cannot be construed to replace any provisions of your policy.

This Notice provides general information regarding access to and the use of Sompo International's proprietary 24/7 Cyber Risk Portal. The Cyber Risk Portal is a secure, web-based tool provided with your Sompo International policy to help your organization manage network risk and privacy exposures, and to provide information regarding what to do in the event of a privacy incident or network attack. Hosted by NetDiligence, a network security and privacy consulting organization, the Cyber Risk Portal contains network security and data management news, tools, and vendor information.

Once registered, Sompo International insureds have immediate access to risk management resources allowing you to better understand the current state of your organization's network security controls and identify immediate threats to both your network and your company. Many of these services are provided by vendors at no charge to you.

In addition, this site contains contact information for the breach assist experts, who can be retained through the Breach Assist Counsel immediately in the event of a known or suspected privacy incident, ransomware or other network event. Please note that these services are provided by a third-party legal services firm and in most cases any legal advice provided will be subject to that firm's billable rates per hour.

The Cyber Risk Portal is a proprietary service for Sompo International customers only. It contains information regarding a variety of network security and privacy consultants and service providers. Access credentials should not be shared with anyone outside of your organization.

To register for Sompo International's Cyber Risk Portal:

1. Go to <https://sompousecure.com>
2. Complete the registration form using your one time access code: 13177

Once registered, you can access the portal immediately.

If you experience issues using the Cyber Risk Portal or have any related questions, please contact Sompo International directly at: cyberportal@sompo-intl.com.



Sompo International Ransomware and Breach Response Management Resources

Sompo International identifies the leading providers of legal, forensic, and response vendors to assist our clients in the event of a ransomware or data breach incident and offers their services at the most competitive rates. Your first call after learning of an actual or potential breach should be to Sompo International Breach Assist Counsel, who will coordinate the engagement of these firms after consultation with you and Sompo International.

Breach Assist Counsel

Mullen Coughlin LLC
McDonald Hopkins LLC

Credit Monitoring/Mail and Call Center

Kroll
Experian
Epiq
TransUnion

Forensic Investigation/ Restoration

Ankura
Charles River Associates
CrowdStrike
Kivu
Kroll
Mox5
Stroz Friedberg
Tracepoint
Unit 42
West Monroe

Legal/Defense

Baker Hostetler LLP
Ballard Spahr LLP
Davis Wright Tremaine LLP
Holland & Knight LLP
Mullen Coughlin LLC
McDonald Hopkins LLC
Norton Rose Fulbright LLP

Sompo International Risk Management Resources

Sompo International is pleased to provide risk management resources to our insureds to enable you to better understand your current risks and to provide actionable information allowing you to secure network and data resources. The below services are **offered free of charge** and ordered through the Sompo International Cyber Risk Portal.

Bait and Phish Social Engineering Testing and Phishing Campaign 	Bait and Phish performs a social engineering test of your organization, including a comprehensive email spoofing and phishing campaign. Bait and Phish sends bogus emails with attachments and embedded hyperlinks to ascertain the rates at which employees open these emails and click on links and attachments. In addition, Bait and Phish performs pretext phone-based testing of users in an attempt to gain confidential information such as username and passwords from a defined set of users in the organization. Insureds are provided summary reports at the end of the campaign.
BitSight Security Risk Rating Report 	Sompo International insureds can obtain a detailed Data Analytics Risk Rating Report of their organization which identifies key strengths and weaknesses of the insured's information security posture. The report, which can be accessed annually, includes an overview of the company's Security Rating history and overall performance, along with comparisons to the industry average and an in-depth analysis of company-observed events and current security standards on its servers.
Quiet Audit- Common Vulnerabilities and Exposures Survey 	Sompo International has partnered with NetDiligence ® to provide an easy- to-use online self-assessment that will enable insureds to confirm that their organizations have addressed the most common critical vulnerabilities.
Breach Plan Connect® 	The NetDiligence® solution guides organizations through an online process to develop a data breach-focused Incident Response Plan. NetDiligence hosts the plan providing your organization anytime, anywhere access from any device.

Sompo International makes no representation, guarantee or warranty, express or implied, concerning the services or products of any vendors, including any warranty of fitness for a particular purpose, accuracy, reliability, or efficiency of such services or products. The vendors identified in this Notice and at <https://sompsecure.com> are independent contractors, and Sompo International has no control over the services rendered or products provided. Your use of the vendors is at your sole risk, and under no circumstances shall Sompo International be liable for any damages arising from any services rendered or failed to be rendered or any products provided by any vendor identified in this Notice and at <https://sompsecure.com>.



Best Practice Microsoft Office Configuration to Minimize Phishing Risks

Sompo International has partnered with Unit 42, a leading cyber security consulting firm, to provide breach readiness reviews for our Sompo Premier Professional insureds.

With an increase in the number of cyber security compromises as a result of phishing attacks, Unit 42 identified best practices which companies using Microsoft Office 365 can follow to prevent or mitigate the damage from these incidents. Common phishing attacks rely on email system vulnerabilities to obtain sensitive information such as email credentials which can then be used to maliciously alter messages or redirect payments.

We recommend enabling as many of the following Microsoft tools as practical to configure your Office 365 environment to minimize risk. Note that many of the tools referenced below are available at no cost; however, some tools may require a subscription.

Enable multi-factor authentication (MFA)	In conjunction with a strong password policy (password complexity enabled, password rotation etc.) multi-factor authentication adds an extra layer of protection by requiring users to acknowledge an additional challenge to access their account. This lessens the likelihood of a compromise even if a password has been stolen and/or compromised. Details on MFA and an implementation guide are found here: https://support.office.com/en-us/article/set-up-multifactor-authentication-for-office-365-users-8f0454b2-f51a-4d9c-bcde-2c48e41621c6
Enable the unified audit log and mailbox audit logging	The Office 365 unified audit log provides a centralized logging facility that includes activities from Azure Active Directory, Exchange Online, SharePoint Online, OneDrive for Business, and other applications. Note that the unified audit log is not currently enabled by default and needs to be manually enabled. Details on enabling the unified audit log and an implementation guide are found here: https://support.office.com/en-us/article/Search-the-audit-log-in-the-Office-365-Security-Compliance-Center-0d4d0f35-390b-4518-800e-0c7ec95e946c Mailbox auditing generates additional logs that include mailbox activities performed by the owner, a delegated user, or an administrator. Note that mailbox auditing is not currently enabled by default and needs to be manually enabled. Details on the mailbox activities tracked by mailbox auditing are found here: https://docs.microsoft.com/en-us/exchange/policy-and-compliance/mailbox-audit-logging/mailboxaudit-logging Details on enabling mailbox auditing and an implementation guide are found here: https://go.microsoft.com/fwlink/p/?LinkID=626109



Configure and enable Data Loss Prevention (DLP)	Data Loss Prevention allows an administrator to identify and create policies to prevent users from accidentally or intentionally sharing sensitive information. DLP can be implemented across all Office 365 applications, SharePoint, and OneDrive. Details on enabling DLP and an implementation guide are found here: https://support.office.com/en-us/article/overview-of-data-loss-prevention-policies-1966b2a7-d1e2-4d92-ab61-42efbb137f5e
Enable Office 365 Cloud Application Security	Microsoft's Cloud Application Security enables an administrator to investigate suspicious activities. Office 365 consists of multiple tools that enable an organization to track a number of suspicious activities from unauthorized users, track ransomware activity, and much more. Note: Office 365 Cloud Application Security is only available to Enterprises Licensees. Details on Office 365 Cloud Application can be found here: https://support.office.com/en-us/article/overview-of-office-365-cloud-app-security-81f0ee9a-9645-45ab-ba56-de9cbccab475?ui=en-US&rs=en-US&ad=US
Enable Secure Score	Microsoft's Secure Score is a security analytics score that analyzes an Office 365 settings and activities and compares them to a baseline. A score is calculated which shows whether an organization is aligned with best security practices. Secure Score requires an Enterprise subscription and an administrator account. Details on obtaining, enabling Secure Score and an implementation guide are found here: https://support.office.com/en-us/article/introducing-the-office-365-secure-score-c9e7160f-2c34-4bd0-a548-5ddcc862eaef

About Unit 42

Unit 42 is a cyber security consulting firm. Our consultants are information security experts with a diverse set of information security skills and experience. We are security engineers, digital forensic experts, malware reversers, penetration testers, and data breach incident responders. We work with organizations to proactively identify and mitigate enterprise risk and to respond to sophisticated network intrusions. We have responded to and managed investigations of complex data breach incidents for global organizations, including attacks by nation-state actors, insiders, and cyber criminals looking to steal confidential, sensitive or proprietary data. In all of our engagements our findings and conclusions are measured against industry best practice, rooted in fact, and designed to withstand opposing party scrutiny.



Best Practice Microsoft Office Configuration to Minimize Phishing Risks

Sompo International has partnered with The Crypsis Group, a leading cyber security consulting firm, to provide breach readiness reviews for our Sompo Premier Professional insureds.

With an increase in the number of cyber security compromises as a result of phishing attacks, The Crypsis Group identified best practices which companies using Microsoft Office 365 can follow to prevent or mitigate the damage from these incidents. Common phishing attacks rely on email system vulnerabilities to obtain sensitive information such as email credentials which can then be used to maliciously alter messages or redirect payments.

We recommend enabling as many of the following Microsoft tools as practical to configure your Office 365 environment to minimize risk. Note that many of the tools referenced below are available at no cost; however, some tools may require a subscription.

Enable multi-factor authentication (MFA)	In conjunction with a strong password policy (password complexity enabled, password rotation etc.) multi-factor authentication adds an extra layer of protection by requiring users to acknowledge an additional challenge to access their account. This lessens the likelihood of a compromise even if a password has been stolen and/or compromised. Details on MFA and an implementation guide are found here: https://support.office.com/en-us/article/set-up-multifactor-authentication-for-office-365-users-8f0454b2-f51a-4d9c-bcde-2c48e41621c6
Enable the unified audit log and mailbox audit logging	The Office 365 unified audit log provides a centralized logging facility that includes activities from Azure Active Directory, Exchange Online, SharePoint Online, OneDrive for Business, and other applications. Note that the unified audit log is not currently enabled by default and needs to be manually enabled. Details on enabling the unified audit log and an implementation guide are found here: https://support.office.com/en-us/article/Search-the-audit-log-in-the-Office-365-Security-Compliance-Center-0d4d0f35-390b-4518-800e-0c7ec95e946c Mailbox auditing generates additional logs that include mailbox activities performed by the owner, a delegated user, or an administrator. Note that mailbox auditing is not currently enabled by default and needs to be manually enabled. Details on the mailbox activities tracked by mailbox auditing are found here: https://docs.microsoft.com/en-us/exchange/policy-and-compliance/mailbox-audit-logging/mailboxaudit-logging Details on enabling mailbox auditing and an implementation guide are found here: https://go.microsoft.com/fwlink/p/?LinkID=626109



Configure and enable Data Loss Prevention (DLP)	Data Loss Prevention allows an administrator to identify and create policies to prevent users from accidentally or intentionally sharing sensitive information. DLP can be implemented across all Office 365 applications, SharePoint, and OneDrive. Details on enabling DLP and an implementation guide are found here: https://support.office.com/en-us/article/overview-of-data-loss-prevention-policies-1966b2a7-d1e2-4d92-ab61-42efbb137f5e
Enable Office 365 Cloud Application Security	Microsoft's Cloud Application Security enables an administrator to investigate suspicious activities. Office 365 consists of multiple tools that enable an organization to track a number of suspicious activities from unauthorized users, track ransomware activity, and much more. Note: Office 365 Cloud Application Security is only available to Enterprises Licensees. Details on Office 365 Cloud Application can be found here: https://support.office.com/en-us/article/overview-of-office-365-cloud-app-security-81f0ee9a-9645-45ab-ba56-de9cbccab475?ui=en-US&rs=en-US&ad=US
Enable Secure Score	Microsoft's Secure Score is a security analytics score that analyzes an Office 365 settings and activities and compares them to a baseline. A score is calculated which shows whether an organization is aligned with best security practices. Secure Score requires an Enterprise subscription and an administrator account. Details on obtaining, enabling Secure Score and an implementation guide are found here: https://support.office.com/en-us/article/introducing-the-office-365-secure-score-c9e7160f-2c34-4bd0-a548-5ddcc862eaeef

About The Crypsis Group

The Crypsis Group is a cyber security consulting firm. Our consultants are information security experts with a diverse set of information security skills and experience. We are security engineers, digital forensic experts, malware reversers, penetration testers, and data breach incident responders. We work with organizations to proactively identify and mitigate enterprise risk and to respond to sophisticated network intrusions. We have responded to and managed investigations of complex data breach incidents for global organizations, including attacks by nation-state actors, insiders, and cyber criminals looking to steal confidential, sensitive or proprietary data. In all of our engagements our findings and conclusions are measured against industry best practice, rooted in fact, and designed to withstand opposing party scrutiny.



US Sompo Pro
1221 Avenue of the Americas
New York, NY 10020

Premier Professional Liability and Network Risk Insurance Binder for EnCap Investments L.P.

January 23, 2023

To: Brendan Goodwin
Willis Towers Watson Northeast, Inc.
200 Liberty Street
Brookfield Place
New York, NY 10281

From: Farzana Akhter
Senior Underwriter
US Sompo Pro
fakhter@sompo-intl.com
646-714-3916

Dear Brendan,

We are pleased to provide the following Binder:

Named Insured: EnCap Investments L.P.
9651 Katy Freeway
Houston, TX 77024

Insurer: Endurance American Specialty Insurance Company
Non-Admitted Paper
A.M. Best Rating: A+XV
Standard & Poor's Credit Rating: A+ (Strong)

Policy Form: Premier Professional Liability and Network Risk Insurance
Form Number: SPP 2001 0119

Policy Period: From: January 23, 2023 To: July 23, 2024
(12:01 AM Standard Time on both dates at the address of the Named Insured.)

Policy Number: PRV30031184800

Coverages to the Policy:

Third-Party Coverage		Each Claim Limit	Insuring Agreement Aggregate Limit	Retention	Retroactive Date
A.	Professional Services Liability	Not Applicable	Not Applicable	Not Applicable	Not Applicable
B.	Technology Services Liability	Not Applicable	Not Applicable	Not Applicable	Not Applicable
C.	Media Liability	\$5,000,000	\$5,000,000	\$50,000	Full Prior Acts
D.	Privacy and Network Security Liability	\$5,000,000	\$5,000,000	\$50,000	Full Prior Acts
First-Party Coverage		Each Cyber Event Limit	Insuring Agreement Aggregate Limit	Retention	
E.	Privacy and Network Security Breach Costs	\$5,000,000	\$5,000,000	\$50,000	
F.	Direct Business Interruption Loss	\$5,000,000	\$5,000,000	\$50,000	
G.	Contingent Business Interruption Loss	\$5,000,000	\$5,000,000	\$50,000	
H.	Digital Asset Loss	\$5,000,000	\$5,000,000	\$50,000	

First-Party Coverage		Each Cyber Event Limit	Insuring Agreement Aggregate Limit	Retention	
I.	Cyber Extortion Threat	\$5,000,000	\$5,000,000	\$50,000	
PCI Fines and Penalties Limit:				\$5,000,000	
Reward Payment Limit:				\$50,000	
Maximum Total Policy Period Aggregate Limit of Liability:				\$5,000,000	
Waiting Period - Direct Business Interruption Loss:				10 Hours	
Waiting Period - Contingent Business Interruption Loss:				10 Hours	

Premium: Total Premium \$77,463*

*Premium includes TRIA coverage

Producer is responsible for the payment and handling of any and all applicable Surplus Lines Taxes, Fees and Filings in the home state.

Minimum Earned Premium: 25%

Commission: 15%

Endorsements to the Policy:

Number	Title	Comments
PN 0025 0520 TX	Texas - Important Notice	
SN 9040 0914 TX	SN - TEXAS	
SPP 1001 0119	Premier Professional Liability and Network Risk Insurance Policy Declarations	
IL 0101 0712	Forms and Endorsement Schedule	
IL 1204 0115	Cap on Losses from Certified Acts of Terrorism	
SPP 3024 0119	Computer Property Damage Endorsement	\$5,000,000 Each Event \$5,000,000 Aggregate \$50,000 SIR
SPP 3027 0119	Consequential Reputational Loss Coverage Endorsement	\$2,500,000 Each Event/\$2,500,000 Aggregate/\$50,000 SIR/Fourteen (14) Days Waiting Period
SPP 3031 0119	Contingent Business Interruption System Failure Coverage Endorsement	\$2,500,000 each event/\$2,500,000 Aggregate
IL 1214 1220	Disclosure Pursuant to Terrorism Risk Insurance Act	
SPP 3121 0119	Invoice Fraud Coverage Endorsement	\$100,000 Each Event/\$100,000 Aggregate/\$50,000 SIR
SPP 3076 0119	Nuclear Energy Liability Exclusion Endorsement	
SPP 3153 0121	Ransomware Support Endorsement	
IL 1301 0712	Service of Suit	
SPP 3185 0921	Social Engineering Fraud Coverage Endorsement	
SPP 2001 0119	Premier Professional Liability and Network Risk Insurance Policy	
IL 1008 0114	Signature Page	
PN 0001 0721	U.S. Treasury Department's Office of Foreign Assets Control (OFAC)	

The titles of the endorsements listed above are solely for convenience and form no part of the terms and conditions of coverage.

Continuity Date: 03/01/2021

**Terms and
Conditions:**

1. This binder is strictly conditioned upon no material change in the risk occurring between the date of the proposal letter and the inception date of the proposed policy (including any claim or notice of circumstances which may be reasonably expected to give rise to a claim under any policy of which the policy being proposed by this letter is a renewal, replacement or excess of). In the event of such change in risk the Insurer may, at its sole discretion, modify and/or withdraw this proposal.

Subjectivities:

	<u>Item</u>	<u>Due Date</u>
1.	Fully completed, signed and dated Surplus Lines Form.	January 27, 2023

Notwithstanding the payment of any premium, this binder shall be considered a temporary and conditional binder and is expressly contingent upon receipt, review and acceptance of the subjectivities listed above. We must receive all of the items identified above by the Due Date listed above. If all of these items are not received within and accepted by us on or before that date, this temporary binder will, unless otherwise provided by law, automatically expire without further notice or action.

Binder Expires: Upon Policy Issuance



Farzana Akhter
Senior Underwriter
US Somp Pro



US Sompo Pro
1221 Avenue of the Americas
New York, NY 10020

Premium Payment Invoice

(Please remit payment no later than March 09, 2023)

If you have any questions regarding
remittance, please contact:
Sompo International Accounting Business Services Group
Email: ESUAccounting@sompo-intl.com

Invoice Date: January 23, 2023

Attention: Willis Towers Watson Northeast, Inc. Brendan Goodwin 200 Liberty Street Brookfield Place New York, NY 10281	Sent Via: E-mail Invoice Number: GW-590437 Phone: 212-309-3723
Policy Number: PRV30031184800 Named Insured: EnCap Investments L.P. Insurer: Endurance American Specialty Insurance Company Effective Date: January 23, 2023 Expiration Date: July 23, 2024 Underwriter: Farzana Akhter	Total Premium: \$77,463 Less Commissions: 15% Total Amount Due: \$65,844
Via Electronic Transfer: Endurance Bank Name: Wells Fargo Account number: 4122220049 WIRE/ ACH ABA: 1210-0024-8	Via Check: Make Check Endurance Payable to: Send check to: LockBox 9027 PO Box 789027 Philadelphia, PA 19178-9027 Overnight Endurance Address: LockBox 9027 101 North Independence Mall East Philadelphia, PA 19106



US Sampo Pro
1221 Avenue of the Americas
New York, NY 10020

January 23, 2023

Willis Towers Watson Northeast, Inc.
200 Liberty Street
Brookfield Place
New York, NY 10281

Sent via: E-Mail

Attn: Brendan Goodwin

Insured: EnCap Investments L.P.

Policy Number: PRV30031184800

Company: Endurance American Specialty Insurance Company

Surplus Lines Letter

- This account has been bound on a Surplus Lines basis subject to the regulatory requirements of the insured's home state of TX.
- As the producing broker, it is your responsibility to arrange for the payment of applicable state taxes and/or fees.
- Please return a copy of this letter within 30 days with your acknowledgement you have arranged for the filing and payment of surplus lines taxes and/or fees in accordance with the insured's home state regulations.

The insured's home state Licensed Surplus Lines Broker is:

Name: _____
Address: _____

Surplus Lines License #: _____
Insured's Home State: _____

By: _____
Producing Broker Signature

Producing Broker (print name)



Endurance American Specialty Insurance Company

NOTICE TO BROKER

MANDATORY POLICYHOLDER DISCLOSURE RE: TERRORISM INSURANCE COVERAGE

WE ARE REQUIRED BY THE TERRORISM RISK INSURANCE ACT (TRIA), AS REAUTHORIZED AND AMENDED, TO PROVIDE POLICYHOLDERS WITH A CLEAR AND CONSPICUOUS DISCLOSURE OF THE PREMIUM WE ARE CHARGING FOR TERRORISM COVERAGE AND THE FEDERAL SHARE OF COMPENSATION FOR SUCH COVERAGE. THIS NOTICE MUST BE PROVIDED AT THE TIME OF OFFER, PURCHASE AND RENEWAL OF THE POLICY.

WE HAVE PROVIDED YOU WITH A NOTICE THAT MEETS THE ACT'S REQUIREMENTS. YOU ARE INSTRUCTED TO DELIVER A COPY OF THIS NOTICE TO OUR PROSPECTIVE INSURED WHEN YOU FORWARD OUR QUOTE.

TRIA TRIB 0115

POLICYHOLDER NOTICE

U. S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL (OFAC)

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. Please read this Notice carefully.

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's website - <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.